



## **DEPARTMENT OF HUMAN SERVICES**

Office of Civil and Forensic Mental Health

### **CIVIL AND FORENSIC MENTAL HEALTH**

#### **2 CCR 505-1**

*[Editor's Notes follow the text of the rules at the end of this CCR Document.]*

---

#### **21.800 UNIFORM METHOD OF DETERMINING ABILITY TO PAY FOR ANY PERSON WHO RECEIVES SERVICES FROM ANY PUBLIC INSTITUTION SUPERVISED BY THE DEPARTMENT OF HUMAN SERVICES FOR THE CARE, SUPPORT, MAINTENANCE, EDUCATION OR TREATMENT OF THE MENTALLY ILL OR DEVELOPMENTALLY DISABLED**

##### **21.810 STATUTORY AUTHORITY**

The statutory authority for these rules and regulations is found at Sections 27-92-101 through 27-92-109, C.R.S.

##### **21.820 DEFINITIONS**

"Ability to Pay" is the amount of the legally responsible person's income and assets available to pay for the individual cost of care, support, maintenance, treatment, and education at the institution.

"Adjusted Assets" is the balance of the assets of the legally responsible person(s) after allowed asset deductions.

"Adjusted Charge" is the charge for hospital care, support, maintenance and treatment, up to but not exceeding the ability to pay of the responsible person(s).

"Adjusted Income" is the balance of the total gross monthly income of the legally responsible person(s) after allowed income deductions.

"Allowed Asset Deduction" includes liabilities; the value of the equity in the home; assets which are specifically targeted for retirement and which are not available for other purposes; and the Supplemental Security Income (SSI) asset allowance for each legally responsible parent, patient, spouse, and other dependent.

"Allowed Income Deduction" includes withholding taxes, employee union or association dues, mandatory retirement deductions, health insurance premiums, conservator fees, one-twelfth of the federal personal exemption allowance for each dependent, and child support and/or alimony payments.

"Colorado Net Taxable Income" refers to the calculation on the State of Colorado Income Tax Form, and reportable under Colorado law, which is used as the base against which state tax liability is determined.

"Cost of Care" refers to the full rate multiplied by the number of days of care provided.

"Department" refers to the Colorado Department of Human Services.

"Dependent" is an individual who qualifies as a dependent under Internal Revenue Service (IRS) regulations for federal income tax purposes.

“Executive Director” refers to the Executive Director of the Department.

“Federal Personal Exemption Allowance” refers to the dollar amount allowed by the IRS for each dependent.

“Full Rate” refers to the institution's daily rate, which is determined periodically, based on the cost for care, support, maintenance, treatment and education of patients, as approved by the Executive Director.

“Institution” refers to any public institution of this state supervised by the Department of Human Services for the care, support, maintenance, education, or treatment of the mentally ill or developmentally disabled.

“Insurance and Other Benefits” includes all insurance, health maintenance organizations, Medicare, Medicaid, and any other resources covering the cost of care, support, maintenance, or treatment by the institution.

“Legally Responsible Person(s)” is the patient, fiduciary, spouse, and parent(s) of children under 18 years of age, as applicable.

“Patient” refers to any person admitted, committed or transferred to any public institution of this state supervised by the Department of Human Services for the care, support, maintenance, education or treatment of the mentally ill or developmentally disabled.

“Personal Needs Allowance” refers to the uniform dollar amount determined by the Department to be available to each patient receiving income from a benefit or employment, which may be used for items not provided by the institution.

“SSI Asset Allowance” refers to the maximum dollar amount of assets that an individual is allowed to retain and still qualify for the Supplemental Security Income (SSI) Program.

## **21.830 INTRODUCTION**

These rules are intended to provide the method used to assess charges at the public institutions under the supervision of the Department of Human Services for the care, support, maintenance, education, or treatment of the mentally ill or developmentally disabled. No person shall be denied admission because of inability to pay. These rules and regulations do not apply to individuals at these institutions who are receiving services under federally funded programs whose rules conflict with these rules.

## **21.840 PROCESS OF DETERMINING ABILITY TO PAY AND ADJUSTED CHARGE**

### **A. Insurance and Other Benefits**

Insurance and other benefits shall be applied first to the cost of care. Insurance and other benefits for any patient shall be billed at the cost of care. A legally responsible person who fails to cooperate in making existing insurance and other benefits available for payment will nevertheless be considered as having benefits available for payment.

### **B. Calculation of Ability to Pay**

The ability to pay shall be calculated taking into consideration the factors in Section 27-92-104, C.R.S., and using the schedule in Section 21.860 of these rules and regulations.

**C. Determination of Adjusted Charge**

The adjusted charge shall be the balance of the cost of care after insurance and other benefits have been deducted, or the ability to pay, whichever is less. If the legally responsible person(s) does not cooperate in making insurance and other benefits available, the legally responsible person(s) will be billed for the amount equal to the dollar value of the insurance or benefits in addition to the lesser of the balance of the cost of care or the ability to pay. If the dollar value of insurance and other benefits cannot be determined, the legally responsible person(s) will be billed the full cost of care.

**D. Modifications**

A legally responsible person whose income is substantially reduced as a result of changed financial circumstances after the ability to pay has been determined, may request a redetermination and provide the hospital with evidence of financial change so that a new ability to pay may be determined based on current income and assets. Should there be an increase in income, assets, insurance or other benefits, this information must be reported to the institution within sixty (60) calendar days of the changed financial circumstances so that an appropriate redetermination of the ability to pay can be made.

**21.850 FACTORS AFFECTING THE DETERMINATION OF ABILITY TO PAY**

The following factors are considered in the determination of ability to pay, in accord with Section 27-92-104, C.R.S.

**A. Length of a Patient's Care and Treatment**

To avoid undue hardship on patients and/or their families, the ability to pay is reduced after the sixth calendar month of treatment.

**B. Medical and Physical Condition of Dependents**

To avoid undue hardship on families, monthly payments for medical services for dependents with serious mental or physical conditions may be deducted from income when the adjusted income is determined, provided adequate supporting documentation is submitted to the institution.

**21.860 SCHEDULE FOR DETERMINING THE ABILITY TO PAY**

The ability to pay of the legally responsible person(s) is the sum of the monthly adjusted income and the monthly adjusted assets available to pay for the cost of care, support, maintenance, treatment, and education at the institution.

The monthly adjusted assets considered available to pay for care, support, maintenance and treatment is one (1) percent of adjusted assets.

The following table is used to calculate the monthly adjusted income considered available to pay for care, support, maintenance, treatment, and education.

**MONTHLY ADJUSTED INCOME AVAILABLE TO PAY FOR CARE, SUPPORT, MAINTENANCE,  
TREATMENT AND EDUCATION**

| <u>Adjusted Income</u> | <u>1st - 6th Calendar Months</u>     | <u>7th and Subsequent<br/>Calendar Months</u> |
|------------------------|--------------------------------------|-----------------------------------------------|
|                        | Percent of Adjusted Income Available |                                               |
| \$0-\$ 499             | 20%                                  | 15%                                           |
| \$500-\$ 999           | 30%                                  | 25%                                           |
| \$1,000 - \$1,499      | 35%                                  | 30%                                           |
| \$1,500 - \$1,999      | 40%                                  | 35%                                           |
| \$2,000 and above      | 45%                                  | 40%                                           |

**21.870 ADDITIONAL FACTORS AFFECTING THE ABILITY TO PAY AND THE ADJUSTED CHARGE**

- A. For legally responsible parents of children under eighteen (18) years of age, the monthly adjusted income available in the seventh and subsequent calendar months shall be one percent of Colorado Net Taxable Income.
- B. For single patients receiving only fixed income benefits, or when a husband and wife both reside in an institution or other health care facility and receive only fixed income benefits, the monthly adjusted income available will be the amount of these benefits, less the personal needs allowance and any other applicable deductions.

**21.900 COMPETENCY EVALUATIONS IN CRIMINAL CASES**

These rules are established to create standards for psychologists and psychiatrists wishing to become approved as evaluators of competency to proceed.

**21.910 DEFINITIONS**

“Approved evaluator” means an evaluator who is currently employed by CDHS; or has completed the application process through the Court Services Division and is providing services under an active purchase order or a personal services contract, or as a fellow in forensic psychology or psychiatry training.

“Board Certification” in forensic psychiatry or forensic psychology means recognition of specialized training and knowledge in the field of forensic psychiatry by the American Board of Psychiatry and Neurology (ABPN), or in the field of forensic psychology by the American Board of Forensic Psychology (ABFP); no amendments or editions are incorporated.

“Competency Evaluator” means a licensed physician who is a psychiatrist or a licensed psychologist, each of whom is trained in forensic competency assessments, or a psychiatrist who is in forensic training and practicing under the supervision of a psychiatrist with expertise in forensic psychiatry and who is an approved evaluator, or a psychologist who is in forensic training and is practicing under the supervision of a licensed psychologist with expertise in forensic psychology and who is an approved evaluator.

“Competent to Proceed” means that the defendant does not have a mental disability or developmental disability that prevents the defendant from having sufficient present ability to consult with the defendant's lawyer with a reasonable degree of rational understanding in order to assist in the defense, or prevents the defendant from having a rational and factual understanding of the criminal proceedings.

“Court-Ordered Competency Evaluation” means a court-ordered examination of a defendant either before, during, or after trial, directed to developing information relevant to a determination of the defendant’s competency to proceed at a particular stage of the criminal proceeding, that is performed by a competency evaluator and includes evaluations concerning restoration to competency.

“Forensic” means relating to or dealing with the application of scientific knowledge to the legal issues of defendants in criminal proceedings.

“Incompetent to proceed” means that, as a result of a mental disability or developmental disability, the defendant does not have sufficient present ability to consult with the defendant’s lawyer with a reasonable degree of rational understanding in order to assist in the defense, or that, as a result of a mental disability or developmental disability, the defendant does not have a rational and factual understanding of the criminal proceedings.

## **21.920 APPLICATION PROCESS**

Individuals other than independent contractors or those providing services under an active purchase order or personal services contract wishing to become an approved evaluator shall contact the Director of Court Services for application information, and the following shall be submitted:

- A. A completed application form;
- B. Verification of licensure as a psychiatrist or psychologist;
- C. Verification of board certification in forensic psychiatry from the ABPN or board certification in forensic psychology from the ABFP, when relevant;
- D. Proof of current malpractice insurance;
- E. A minimum of two work samples, preferably forensic reports;
- F. A minimum of three professional references.

## **21.930 TRAINING**

### **21.931 APPROVED EVALUATORS**

- A. All approved evaluators shall have received training as specified in these rules, consisting of at least six hours of instruction. This initial training shall, at a minimum, cover the following elements:
  - 1. Legal background and legal standards for competency to proceed and competency to stand trial;
  - 2. Forensic versus clinical evaluation, ethical issues and challenges in competency evaluations, dual relationships, constitutional protections for defendants, informed consent in defendants with severe mental illnesses, and communication with attorneys;
  - 3. Interviewing for competency to proceed;
  - 4. Assessment of malingering;
  - 5. Use of third-party (collateral) data and resources;
  - 6. Working with the difficult defendant;

7. Evaluating developmentally delayed defendants;
8. Special issues in evaluating juveniles;
9. Writing the competency or restoration report;
10. Acting as an expert witness; and,
11. Unique requests from the court, such as for evaluations for competency to waive the right to counsel.

**B. Exemptions to Initial Training**

1. Evaluators who are board certified in forensic psychiatry by the ABPN or board certified in forensic psychology by the ABFP shall be considered exempt from this initial training requirement.
2. Evaluators who are in forensic training and practicing under the supervision of a licensed psychiatrist who is an approved evaluator and who has expertise in forensic psychiatry, or a licensed psychologist who is an approved evaluator and who has expertise in forensic psychology, may practice without the initial training; however, it is expected that these evaluators will receive equivalent education during the course of their training programs.
3. Independent contractors or individuals providing services under an active purchase order or personal services contract are not subject to the training requirements in Section 21.931, A.

**C. Ongoing Training**

Approved evaluators other than independent contractors or individuals providing services under an active purchase order or personal services contract shall participate in at least four hours of ongoing training annually. Training will be made available at least annually by staff of the Court Services Division; alternative training to fulfill this requirement may be substituted for that offered by the Court Services Division, with prior approval from the Director of Court Services.

**21.932 MENTORING**

Mentoring shall be made available to approved CDHS-employed evaluators. Mentoring will be provided by senior clinical staff whenever possible.

- A. Approved CDHS-employed evaluators wishing to participate in mentoring will be provided the opportunity to observe one or more evaluations being conducted by senior clinical staff, and to conduct one or more evaluations while being observed by senior clinical staff.

**21.940 STANDARDS FOR CONDUCTING EVALUATIONS AND ESTABLISHING A REPORT**

Each report shall conform with the requirements for report content as set forth in Section 16-8.5-105(5), C.R.S., and in accordance with best practices for forensic assessment of competency to stand trial.

**21.950 QUALITY ASSURANCE**

All approved evaluators shall have one or more of their competency or restoration reports reviewed at least annually by a senior Court Services Division evaluator or his or her designee.

- A. All approved evaluators shall have their first two reports reviewed by the senior Court Services Division evaluator, or his or her designee, with additional reports being reviewed as necessary.
  - B. Any and all reports submitted by approved evaluators are subject to review.
- 

**Editor's Notes**

**History**

New rule eff. 07/30/2023.